

Buildings Ordinance (Application to the New Territories) Ordinance

(Cap. 121)

Contents

Section		Page
	Part 1	
	Preliminary	
1.	Short title	1-2
2.	Interpretation	1-2
	Part 2	
	Application	
3.	Application of Buildings Ordinance to the New Territories	2-2
	Part 3	
	Certificates of Exemption	
4.	General power to issue certificates of exemption in respect of building works	3-2
5.	Special power to issue certificates of exemption in respect of building works	3-2
6.	Site formation works and drainage works	3-2
7.	Effect of certificate of exemption	3-4
8.	Certificates to be in writing	3-6
9.	Director may impose conditions	3-6

Buildings Ordinance (Application to the New Territories) Ordinance

T-4

Cap. 121

Section	Page
10. Proof of issue of certificate	3-6
11. Powers of Director may be exercised by District Lands Officer	3-8
12. <i>(Had its effect)</i>	3-8
13. Transitional	3-8
Schedule Conditions	S-2

To apply the Buildings Ordinance (Cap. 123) to the New Territories, to provide for certificates of exemption from certain provisions of the Buildings Ordinance (Cap. 123) for building works, site formation works and drainage works for certain buildings in the New Territories and to make necessary consequential amendments.

[16 October 1987]

(Format changes—E.R. 2 of 2012)

Part 1

Preliminary

1. Short title

This Ordinance may be cited as the Buildings Ordinance (Application to the New Territories) Ordinance.

2. Interpretation

(1) In this Ordinance, unless the context otherwise requires—

balcony (露台) has the meaning assigned to it by regulation 2 of the Building (Planning) Regulations (Cap. 123 sub. leg. F);
(Amended E.R. 2 of 2012)

building works (建築工程) has the meaning assigned to it by section 2 of the Buildings Ordinance (Cap. 123) save that it shall not include site formation works, drainage works, or the construction of seawalls;

canopy (簷篷) has the meaning assigned to it by regulation 2 of the Building (Planning) Regulations (Cap. 123 sub. leg. F);
(Amended E.R. 2 of 2012)

certificate of exemption (豁免證明書) means a certificate of exemption issued under this Ordinance;

certificate of exemption in respect of agricultural use (關於農業用途的豁免證明書) means a certificate of exemption issued under section 5(c);

certificate of exemption in respect of community use (關於社區用途的豁免證明書) means a certificate of exemption issued under section 5(b);

certificate of exemption in respect of new housing (關於新房屋的豁免證明書) means a certificate of exemption issued under section 5(a);

certificate of exemption in respect of replacement housing (關於重建臨時房屋的豁免證明書) means a certificate of exemption issued under section 5(d);

Director (署長) means the Director of Lands and any person authorized by him under section 11; (*Amended L.N. 291 of 1993*)

District (地方行政區) has the meaning assigned to it by the District Councils Ordinance (Cap. 547); (*Replaced 8 of 1999 s. 89*)

height (高度) in relation to any building means the perpendicular height of the building measured from the level of its lowest point at ground level to, subject to subsection (4), the level of the highest point of its roof;

New Territories (新界) does not include New Kowloon;

party wall (共用牆) means a load-bearing wall—

(a) forming part of a building used or constructed to be used for the purpose of separating adjoining buildings; and

(b) which extends continuously—

- (i) from the floor level of the lowest floor of the building up to the underside of the roof, and
- (ii) from an external wall to the external wall opposite; and
- (c) which has no door, doorway, arch, archway, window or other opening constructed in it;

roofed-over area (有蓋面積) means the area of a building enclosed within the external faces of the main structural walls (which includes any party wall) of that building together with, subject to subsection (5), the area of any balcony, stairway, verandah, porch, canopy or any other projection from the building.

- (2) For the purposes of this Ordinance any word or phrase not defined in subsection (1) and which has a meaning assigned to it by section 2 of the Buildings Ordinance (Cap. 123) shall have that meaning.
- (3) Where a domestic building is divided into separate units by means of one or more party walls each such unit shall, for the purposes of this Ordinance, be considered to be a separate building if any such party wall—
 - (a) where that building is of a height of not more than 7.62 m, is a load-bearing brick wall of not less than 225 mm thick;
 - (b) where that building is of a height of more than 7.62 m but not more than 8.23 m—
 - (i) for the height of the lowest storey, is a load-bearing brick wall not less than 340 mm thick; and
 - (ii) for subsequent floors, is a load-bearing brick wall not less than 225 mm thick; or
 - (c) is a load-bearing reinforced concrete wall not less than 175 mm thick.

- (4) In determining the highest point of a roof no account shall be taken of—
- (a) one stairhood if it has a roof area of not more than 7.44 m², a height of not more than 2.14 m and is erected and used solely to provide protection from rain and sun for a stairway used to gain access to the roof of the building;
 - (b) any parapet on the roof if the height is not more than 1.22 m; or
 - (c) one water storage tank if it has a roof area of not more than 2 m², a height of not more than 1.22 m and is installed at any point on the roof other than on a stairhood.
- (5) For the purpose of calculating the roofed-over area of any building the area of not more than 2 balconies and one canopy shall be excluded if—
- (a) they all project from the same side of the building for a distance of not more than 1.22 m; and
 - (b) they are not enclosed.
-

Part 2

Application

3. Application of Buildings Ordinance to the New Territories

Subject to Part 3, the Buildings Ordinance (Cap. 123) shall apply to the New Territories.

(Amended E.R. 2 of 2012)

Part 3

Certificates of Exemption

4. General power to issue certificates of exemption in respect of building works

The Director may issue a certificate of exemption in respect of any building works in the New Territories.

5. Special power to issue certificates of exemption in respect of building works

Subject to the provisions of this Ordinance, the Director shall issue a certificate of exemption in respect of building works in the New Territories—

- (a) for a building to be built by any person and to be used for non-industrial purposes;
- (b) for a building to be built by a community organization for the use of the community;
- (c) for a building to be built on agricultural land and to be used solely for agricultural purposes;
- (d) for the replacement of a temporary structure in the New Territories.

6. Site formation works and drainage works

Where the Director has issued a certificate of exemption under section 4 or 5 he may also issue—

- (a) a certificate of exemption in respect of site formation works;
- (b) a certificate of exemption in respect of drainage works.

7. Effect of certificate of exemption

- (1) Subject to subsection (2) and to compliance with any conditions imposed by the Director under section 9—
 - (a) sections 4, 9, 9AA, 14, 21, 30, 30A, 30B, 30C, 30D, 30E and 30F of the Buildings Ordinance (Cap. 123) and the regulations made under that Ordinance shall not apply— (*Amended 20 of 2008 s. 47; 16 of 2011 s. 45*)
 - (i) in respect of building works or site formation works; and
 - (ii) for any building,
specified in a certificate of exemption; and
 - (b) the provisions and regulations mentioned in paragraph (a) and section 28 of the Buildings Ordinance (Cap. 123) shall not apply—
 - (i) in respect of any drainage works; and
 - (ii) for any building,
specified in a certificate of exemption,
carried out by or on behalf of the person named in that certificate of exemption.
- (2) Subsection (1) shall not apply in relation to a certificate of exemption issued under section 4 or 5 in respect of a building of greater dimensions than the building described—
 - (a) in the case of—
 - (i) a certificate of exemption in respect of new housing;
 - (ii) a certificate of exemption in respect of community use; or
 - (iii) a certificate of exemption granted under section 4,

in Part 1 of the Schedule;

- (b) in the case of a certificate of exemption in respect of agricultural use, in Part 2 of the Schedule; or
- (c) in the case of a certificate of exemption in respect of replacement housing, in Part 3 of the Schedule.
(Amended E.R. 2 of 2012)

8. Certificates to be in writing

Any certificate of exemption issued under this Ordinance shall be in writing and in a form determined by the Director.

9. Director may impose conditions

The Director may issue a certificate of exemption subject to such conditions relating to safety and health or such other reasonable conditions as he may impose and any such conditions shall be recorded on the certificate of exemption.

10. Proof of issue of certificate

For the purpose of any proceedings under this Ordinance a document purporting to be a copy of a certificate of exemption and purporting to be certified to be a true copy by the Director or any District Lands Officer shall be received in evidence on its production without further proof, and—

- (a) until the contrary is proved, it shall be presumed that—
 - (i) the document is a true copy of the certificate of exemption; and
 - (ii) the person who certified the document was, as the case may be, the Director or a District Lands Officer; and
- (b) such document shall be prima facie evidence of all matters contained therein.

11. Powers of Director may be exercised by District Lands Officer

The powers of the Director under this Ordinance, other than his powers under section 4, may be exercised on his behalf by any District Lands Officer of a District in the New Territories.

12. *(Had its effect)*

13. Transitional

Notwithstanding the repeal of the Buildings Ordinance (Application to the New Territories) Ordinance (Cap. 322, 1964 Ed.) and the Buildings Ordinance (Application to the New Territories) Regulations (Cap. 322, sub. leg., 1984 Ed.) by section 12, that Ordinance and those regulations shall continue to apply to any building works, site formation works or drainage works to which that Ordinance and those regulations applied immediately before their repeal, and which are in course of being carried out at the commencement of this Ordinance.

Schedule

[s. 7(2)]

Conditions

Part 1

Certificate of Exemption in respect of New Housing or Community Use, or Issued under Section 4

1. (1) The building, when constructed, will be a building of not more than 3 storeys and—
 - (a) of a height of more than 7.62 m but not more than 8.23 m and with a roofed-over area not exceeding 65.03 m², and in respect of which the thickness of each load-bearing wall—
 - (i) in the case of a load-bearing reinforced concrete wall is not less than 175 mm thick; or
 - (ii) of the lowest storey is in the case of a load-bearing brick wall not less than 340 mm; and
 - (iii) of any higher storey is in the case of a load-bearing brick wall not less than 225 mm; or
 - (b) of a height of not more than 7.62 m—
 - (i) with a roofed-over area not exceeding 92.90 m² where the building complies with approved plans; or
 - (ii) with a roofed-over area not exceeding 65.03 m².

- (2) In this Part *approved plans* (批准圖則) means plans prepared by the Director or plans so prepared and modified with his consent.

Part 2

Certificate of Exemption in respect of Agricultural Use

2. The building when constructed will be of a single storey and a height of not more than 4.57 m.

Part 3

Certificate of Exemption in respect of Replacement Housing

3. The building when constructed will have a roofed-over area of not more than 37.16 m² and be of a height of not more than 5.18 m.